

Equivalent Citations
citation codes .

AMRIT SINGH v. PUNJAB AND SIND BANK

Debts Recovery Appellate Tribunal (Mar 13, 2023)

CASE NO.

MISC APPLICATION/112/2023

JUDGES

- HON'BLE Mr. Justice Brijesh Sethi

ATTORNEY

JUDGMENT

Brijesh Sethi, Chairperson: — This matter has been taken up by me through Video Conferencing on being mentioned by the learned counsel because of the urgency that the possession of the *property* is going to be taken over today, i.e. 13.03.2023.

Misc. Application No. 112/2023

2. This application has been filed by the applicant seeking direction to the learned DRT-II, Delhi to take up the S.A. No. 104/2023 and to decide the same at the earliest.

3. The learned counsel for the applicant states that the learned Receiver appointed by the learned CMM has issued notice for taking possession of the *property* in question today, i.e. 13.03.2023. He submits that the applicants have filed an S.A. No. 104/2023 before the learned DRT- II, Delhi in respect of the *property* question. Learned counsel for the applicants further submits that since the learned DRT-II, Delhi has no regular Presiding Officer and its additional charge has been given to the learned Presiding Officer, DRT-III, Delhi, and his matter is not being taken up. In these circumstances, the learned counsel states that the learned Presiding Officer, DRT-III, Delhi, who is holding additional charge of DRT-II, Delhi, may be directed to take up the S.A. in question today and decide the same at the earliest.

4. Heard. The learned Presiding Officer, DRT-III, Delhi, who is holding additional charge of learned DRT-II, Delhi, is requested to take up the applicant's S.A. No. 205/2023 at 2 p.m. today and pass appropriate orders in accordance with law.

5. With the above direction, the application stands disposed of.

6. File be consigned to record room.

7. Copy of the order be sent to the learned DRT.